

January 11, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14889
(FIRST REVISION)

EXPIRATION DATE: September 30, 2016

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Albemarle Corporation
Baton Rouge, LA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain UN portable tanks that are waived from the requirement to perform an internal examination as part of the intermediate 2.5 year periodic inspection when used exclusively for the transport of certain Class 4 organometallic substances. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that the special permit number is not required to be marked on the shipping paper; § 172.301(c) in that the special permit number is not required to be marked on the portable tank; and § 180.605(d) in that the internal visual examination is waived.

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5. BASIS: This special permit is based on the application of Albemarle Corporation dated July 30, 2012 submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organometallic substance, liquid, pyrophoric, water-reactive.	4.2	UN3394	I
Organometallic substance, liquid, water-reactive, flammable.	4.3	UN3399	I, II, III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The packaging prescribed is a DOT Specification UN Portable Tank(s) designed and manufactured in accordance to the requirements of Part 178 of the Hazardous Materials Regulations.

b. Testing - The DOT Specification UN Portable Tanks operated under the provisions of this special permit must be tested and inspected in accordance with the requirements of § 180.605 except the 2.5 year internal visual inspection is waived (§ 180.605(d)). All other periodic tests and inspections must be performed in accordance with the Hazardous Materials Regulations.

c. OPERATIONAL CONTROLS -

- (1) The DOT Specification UN Portable Tanks authorized under this special permit must only be used to transport the hazardous materials listed in paragraph 6. In addition each tank operating under the terms of this special permit must display an advisory notice by marking or on a tag near the filling opening indicating the portable tank(s) is in restricted service.

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- (2) The portable tanks transported in accordance with this special permit must be operated in a closed system controlled by Albemarle Corporation. The portable tanks must be filled, maintained, and periodically inspected by Albemarle Corporation or an authorized entity.
- (3) Portable tanks must be transported in accordance with the following:
 - (a) Portable tanks with a capacity of 1700 liters (450 gallons) or more must be transported by contract carriers evaluated and determined suitable and qualified by Albemarle to transport the hazardous materials authorized by this special permit.
 - (b) Portable tanks with a capacity of less than 1700 liters (450 gallons) must be transported on flatbed trailers or in vehicles or freight containers. Unless the trailer, vehicle or freight container is under exclusive use for Albemarle products, the portable tanks must be isolated from other freight by a sealed divider which is locked in place and tagged to prevent tampering.
 - (c) The requirements of this paragraph (7.c.(3)) do not apply to portable tanks containing only the residue of a hazardous material.
- (4) A copy of the special permit is not required to accompany the shipment during transportation, but must be provided to DOT representatives upon request.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

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c. A copy of this special permit must be kept at each facility where portable tank(s) authorized under this special permit are tested and inspected.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel, and Rail Freight.
10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

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12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MAJORSL/kah